Diplomatic Privileges Act (No. 9 of 1996) - Sect 1

short title

1. This Act may be cited as the Diplomatic Privileges Act, short title No. 9 of 1996.

Application of the Vienna Convention on Diplomatic Relations

2.

(1) Subject to the provisions of section 3 of this Act, the Articles of the Vienna Convention on Diplomatic Relations (hereinafter referred to as "Articles") specified in the Schedule to this Act, shall have the force of law in Sri Lanka and shall be construed in accordance with the succeeding provisions of this section.

(2) In those Articles-

Restriction of privileges and immunities

3. If it appears to the Minister that the privileges and immunities accorded to a Sri Lankan mission in any State abroad, or to persons connected with that mission, are less than those conferred by this Act on the mission of such State or on the persons connected with that mission, the Minister may by Order published in the Gazette, declare that such of the provisions of this Act as are specified In such Order shall, with effect from such date as may be specified in such Order, cease to apply with respect to the mission of that State or to such categories of members of the mission of that State, as is, or are, specified therein.

Diplomatic Privileges Act (No. 9 of 1996) - Sect 4

Extension of provisions Act to certain international organization

4.

(1) Where the Government of Sri Lanka has entered into an agreement with any inter-governmental or international organization providing for the grant of any immunities and privileges, to the officers or agents or property of such organization, the Minister may, by Order published in the Gazette, and to the extent necessary to give effect to the terms of such agreement, declare that such of the provisions of this Act as are specified in such Order shall apply to such officers, agents and property, of such organization as are, or is, specified in such Order, to such extent as is specified therein, and upon the making of such Order such, of the provisions of this Act as are specified therein, shall, mutatis mutandis, apply to such officers, agents and property of such Organization as are, or is, specified therein.

(2) Every Order made under this section shall recite or embody the terms of the agreement in consequence of which such Order, was made and shall come into force on the date of publication of suck Order, or on such later date as may be specified therein, and shall remain in

force for so long, and so long only, as the agreement in consequence of which such Order was made remains in force.

Order to be placed before Parliament

5.

(1) Every Order made under sections 2, 3 or 4 shall as soon as convenient after its publication in the Gazette be placed before Parliament for approval. Any Order which is not so approved shall be deemed to be "rescinded from the date of its disapproval, but without prejudice to anything previously done thereunder.

(2) Where any Order is deemed to be rescinded by virtue of the operation of the provisions of subsection (1) of this section, notification of such rescission shall be published in the Gazette.

Evidence

6. Where in any proceedings a question arises as to whether or not any person is entitled to any privilege or immunity under this Act, a certificate under the hand of the Secretary to the ministry of the Minister in charge of the subject of Foreign Affairs, stating the facts relating to such question shall be admissible in evidence and shall be conclusive evidence, of the facts started therein.

Sinhala text to prevail in case of inconsistency

7. In the event of any inconsistency between the Sinhala and Tamil texts of this Act, the Sinhala text shall prevail.